

BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

	)	
IN THE MATTER OF:	)	DIA NO. 01PHSW005
	)	
	)	FINDINGS OF FACT,
DEBORAH C. GUFFY	)	CONCLUSIONS OF LAW,
Respondent	)	DECISION AND ORDER

On December 6, 2001, the Iowa Board of Social Work Examiners (Board) filed a Statement of Charges against Deborah C. Guffy (Respondent) alleging that she had violated Iowa Code section 272C.3(2)"a" by failing to comply with a decision of the Board imposing licensee discipline. A Notice of Hearing was issued scheduling the hearing for February 11, 2002 at 9:45 a.m.

The hearing was held on February 11, 2002 in the fifth floor conference room, Lucas State Office Building, Des Moines, Iowa. The state of Iowa was represented by Heather Adams, Assistant Attorney General. The Respondent did not appear and was not represented by counsel. The following members of the Board were present for the hearing: Jennifer Lock Oman, L.I.S.W.; Janice McCoy, L.B.S.W.; Joyce Westphal, L.I.S.W.; and Joan Hester, Public Member. Margaret LaMarche, Administrative Law Judge from the Iowa Department of Inspections and Appeals, assisted the Board in conducting the hearing. The hearing was open to the public, pursuant to Iowa Code section 272C.6(1)(2001).

The Board convened in closed executive session, pursuant to Iowa Code section 21.5(1)(f)(2001), to deliberate its decision. The administrative law judge was instructed to prepare the written decision of the Board, in conformance with their deliberations.

THE RECORD

The record includes the Statement of Charges, Notice of Hearing, Proof of Service, the testimony of the witness, and the following exhibits:

State Exhibit A:	Findings of Fact, Conclusions of Law, Decision and Order, 12/20/00
State Exhibit B:	Letter dated 6/27/01 (Board to Diekema)

FINDINGS OF FACT

1. On December 20, 2000, the Board issued Findings of Fact, Conclusions of Law, Decision and Order to the Respondent, following a contested case hearing. The Board's Order indefinitely suspended the Respondent's license to practice as a social worker. The Order further provided that the indefinite suspension would be stayed, subject to the Respondent's compliance with the following conditions:

a. The Respondent was required to immediately terminate her social relationship with patient #2.

b. Within six (6) weeks of the issuance of the Order, the Respondent was required to submit to the Board the names of three licensed independent social workers (LISW) with whom she had no other business, personal, financial, or educational relationships. The Board would approve one of the three to serve as a practice supervisor for the Respondent. The Respondent was required to have one (1) hour of supervision for every fifteen (15) hours of patient contact. The supervisor would review the Respondent's records with particular attention to all ethical issues, including boundaries and dual relationships. The supervisor was required to provide monthly written reports to the Board indicating the Respondent's compliance or any lack of compliance with ethical practice.

c. Within six (6) weeks of the issuance of the Order, the Respondent was required to submit the names of three licensed mental health professionals with whom she had no other business, personal, financial, or educational relationships. The Board would approve one of the three persons named by the Respondent. The Respondent was required to immediately seek evaluation and assessment from the approved licensed mental health professional for any personal issues that may have clouded her professional judgment. The evaluation, assessment, and any recommendations for treatment were to be submitted for Board review, and the Respondent was required to comply with any treatment recommended as a result of the evaluation and assessment.

d. After six (6) months of social work practice under supervision, the Respondent was required to make a personal appearance before the Board.

(Testimony of Roxanne Sparks; State Exhibit A)

2. In May 2001, the Respondent corresponded with the Board, and told the Board that she was having difficulty locating a practice supervisor or a therapist. She asked the Board to recommend a practice supervisor. The Board recommended that Bruce Buchanan serve as the Respondent's supervisor, and requested the Respondent to undergo an evaluation at Gary Schoener's facility.

On June 27, 2001, the Board's Administrator wrote to the Respondent's attorney, reiterating the Board's recommendation that Bruce Buchanan serve as the Respondent's practice supervisor. The Respondent had indicated that she had begun therapy with Keith Schrag, LMFT, and requested Board approval for Mr. Schrag to serve as her therapist. The Board denied this request, noting that Mr. Schrag had not previously been named by the Respondent as a possible evaluator on January 12, 2001 or on May 9, 2001.

The Board expressed extreme concern that the Respondent had allowed six months to elapse from the date of the Order and had not complied with its requirements. The Respondent was informed that if she did not schedule appointments with Mr. Buchanan and Mr. Schoener by July 6, 2001, the Board would immediately proceed with revoking the stay and imposing the indefinite suspension. (Testimony of Roxanne Sparks; State Exhibit B)

3. As of the date of the hearing, the Respondent has not complied with the conditions of the stay, as established in the Board's Order of December 20, 2000. She has not made appointments with either Mr. Buchanan or Mr. Schoener, has not been supervised by a Board approved supervisor, and has not undergone a Board approved mental health evaluation and assessment. (Testimony of Roxanne Sparks)

4. The Respondent's attorney was served with the Statement of Charges and Notice of Hearing by certified mail, return receipt requested on December 10, 2001. The Respondent did not appear for the hearing. (Proof of Service)

CONCLUSIONS OF LAW

I. Failure To Appear

645 IAC 11.6(1)"b" provides that the statement of charges and notice of hearing may be served by restricted certified mail, return receipt requested. The Respondent's attorney was properly served with the statement of charges and notice of hearing. The Respondent failed to appear for the hearing.

If a party fails to appear or participate in a contested case hearing after proper service of notice, the presiding officer may, if no adjournment is granted, enter a default decision or proceed with the hearing and render a decision in the absence of the party.

II. Failure To Comply With Board Order

Iowa Code Section 272C.3(2)(a)(2001) provides in relevant part:

2. Each licensing board may impose one or more of the following as licensee discipline:

a. Revoke a license, or suspend a license either until further order of the board or for a specified period, ...upon failure of the licensee to comply with a decision of the board imposing licensee discipline.

The preponderance of the evidence established that the Respondent has failed to comply with the requirements imposed in the Board's Order, issued December 20, 2000, as a condition to the stay of indefinite suspension. Although she has been given ample time to comply, the Respondent has not obtained a practice supervisor, has not engaged in the required supervised practice, and has not been evaluated or assessed by an approved mental health professional. The Respondent has violated Iowa Code section 272C.3(2)(a)(2001).

DECISION AND ORDER

The Respondent has not complied with the requirements imposed by the Board and failed to appear for the hearing. Under these circumstances, the stay should be vacated and the indefinite suspension imposed.

IT IS THEREFORE ORDERED, that the stay is hereby VACATED, and the Respondent's license to practice social work, license number 304-00741, is hereby INDEFINITELY SUSPENDED.

IT IS FURTHER ORDERED, pursuant to Iowa Code section 272C.6 that the Respondent shall pay \$75.00 for fees associated with the disciplinary hearing within thirty (30) days of receipt of this decision.

Dated this 26th day of February, 2002.

Original Board order was signed.

Jennifer Lock Oman, L.I.S.W.
Chairperson
Iowa Board of Social Work Examiners

cc: Heather Adams
Assistant Attorney General

Deborah C. Guffy
Respondent

Connie Diekema
Attorney

Default decisions or decisions rendered on the merits after a party has failed to appear or participate in a contested case proceeding become final agency action, unless, within 15 days after the date of notification or mailing of this decision, a motion to vacate is filed and served on all parties or an appeal of the decision on the merits is timely initiated. A motion to vacate shall state all facts relied upon by the moving party which establish that good cause existed for that party's failure to appear or participate at the contested case proceeding. Each fact so stated must be substantiated by at least one sworn affidavit or a person with personal knowledge of each such fact attached to the motion. 645 IAC 11.21(3). The time for further appeal of a decision for which a timely motion to vacate has been filed is stayed pending a decision on the motion to vacate. 645 IAC 11.21(4).

Any appeal to the district court from a decision in a contested case shall be taken within thirty (30) days from the issuance of the decision by the board. 645 IAC 11.29. The cost of preparing a copy of the record or transcribing the hearing shall be paid by the requesting party. 645 IAC 11.23.